

IN THE COUNTY COURT OF THE
TWELFTH JUDICIAL CIRCUIT, IN
AND FOR MANATEE COUNTY,
FLORIDA

CASE NO.: 2025-CC-003916-AX

COLONIAL MANOR MHC
HOLDINGS, LLC,

Plaintiff,

v.

WANDA D. CONNELL, QUENTIN
JULIAN CONNELL, and ANY KNOWN
PARTY(s) IN POSSESSION,

Defendants.

DEFENDANTS' TRIAL MEMORANDUM

COMES NOW, the Defendants, WANDA D. CONNELL, QUENTIN JULIAN CONNELL, and ANY UNKNOWN PARTY(s) IN POSSESSION, by and through their undersigned counsel and hereby files this Trial Memorandum, stating as follows:

Introduction

1. The purpose of this Trial Memorandum is to familiarize this Honorable Court with the issues to be presented at trial, including the factual background and governing legal principals regarding these issues.

2. On or about October 10, 2025, the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC ("Plaintiff"), filed its Complaint in this action against the Defendants, WANDA D. CONNELL, QUENTIN JULIAN CONNELL, and ANY UNKNOWN

PARTY(s) IN POSSESSION ("Defendants"). Therein, Plaintiff brings two counts against Defendants, including: Count I – Action for Possession of the Premises and Count II – Action for Damages.

3. Plaintiff's Complaint stems from an alleged violation of the Rules and Regulations of COLONIAL MOBILE MANOR.

4. While discussed further herein, the central crux of Plaintiff's Complaint is its allegation that Defendants did not remove unauthorized persons from lot 218 of COLONIAL MOBILE MANOR.

5. However, Plaintiff has not, and cannot, establish that: (i) Any unauthorized person remained in or continues to remain in COLONIAL MOBILE MANOR.

Factual Background

6. On or about August 8, 2024, Defendant, QUENTIN JULIAN CONNELL, applied for and was approved to purchase a mobile home within COLONIAL MOBILE MANOR.

7. On or about November 24, 2024, Defendant, WANDA D. CONNELL, applied for and agreed to reside in Lot 218 of COLONIAL MOBILE MANOR.

8. Plaintiff asserts that, Defendants, QUENTIN JULIAN CONNELL and his minor daughter, may reside on the real property at 900 9th Ave East, Lot #218, Palmetto, Florida 34221.

9. However, Defendants have consistently maintained, throughout the duration of this litigation, that none of the named defendants reside at Lot #218. Accordingly, Plaintiff's lack of awareness of this fact is fatal to Plaintiff's claims.

Memorandum of Law and Argument

I. Count I – Action for Possession of Premises

10. Count I of Plaintiff's Complaint is for Possession of the Premises.

11. Accordingly, in order to prove its claim, Plaintiff must prove that a second violation of the same properly promulgated rule or regulation occurred and provided proper notice of same.

12. Plaintiff's claim that Defendants, violated Rule 3 of the Rules and Regulations of COLONIAL MOBILE MANOR, specifically the Defendants did not remove the unauthorized persons from Lot 218 of COLONIAL MOBILE MANOR.

13. However, the record will reflect that Plaintiff: knew of, and (ii) consented to, the Defendants residing at Lot 89 and/or Lot 218.

14. In Harris v. Martin Regency, Ltd., 576 So. 2d 1294, 1298 (Fla. 1991), the Supreme Court of Florida provides, "[t]he legislature also specified that '[e]very ... duty within [chapter 723] imposes an obligation of good faith and fair dealings in its performance or enforcement'" citing to Fla. Stat. § 723.021. "Thus, even if a park owner offered a facially legitimate reason for eviction, the eviction may be voided if the mobile home owners can prove the park owner acted in bad faith." *Id.*

15. Additionally, none of the named Defendants currently reside at Lot 218 nor did they reside at Lot 218 at the time of the filing of this action.

16. Plaintiff is unable to establish that Rule 3 was violated therefore defeating its claim. If it is determined that Rule 3 was in fact violated the eviction should be voided

as the park manager acted in bad faith in allowing the Defendants an opportunity to cure the violation.

II. Count II - Action for Damages

17. Count II of Plaintiff's Complaint is for monthly rent.

18. The monthly rent amount is not disputed and has continued to be paid timely both before the institution of this action and into the court registry throughout the duration of this action to the present.

Conclusion

19. Defendants are an innocent party, who have continued to abide by all park rules and obligations.

20. As Plaintiff will be unable to establish the required elements needed to prove either Count I - Action for Possession of Premises or Count II - Action for Damages, Plaintiff should not be afforded relief. Instead, Defendants, if a prevailing party, shall be entitled to recovery of their attorney fees pursuant Florida Statute § 723.037.

(Certificate of Service to Follow)

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document has been electronically filed via the Florida Court's E-Filing Portal and electronically served on any and all registered participants on this 14th day of May, 2026.

Respectfully Submitted,

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